

**IN THE HIGH COURT OF TANZANIA  
DODOMA SUB-REGISTRY  
AT DODOMA**

**MISC. CIVIL APPLICATION NO. 7327 OF 2025**

*(Arising from Land Appeal No. 89 of 2022 in the High Court of Tanzania at Dodoma; originating from Land Application No. 107 of 2020 in the District Land and Housing Tribunal at Dodoma)*

**ROGATH K. KATENDE..... APPLICANT**

**VERSUS**

**CRDB BANK PLC.....1<sup>st</sup> RESPONDENT**

**CITY LAND COMPANY LTD.....2<sup>nd</sup> RESPONDENT**

**ABDALLAH ABUBAKAR SAGGAF.....3<sup>rd</sup> RESPONDENT**

**RULING**

*10<sup>th</sup> & 29<sup>th</sup> December, 2025*

**MUSOKWA, J.**

The applicant herein filed this application under the provisions of section 14 (1) of the Law of Limitation Act, Cap. 89, R.E. 2019 (LLA), section 5(1)(a) and 11(1) of the Appellate Jurisdiction Act, Cap. 141 R.E. 2019 (AJA); Rules 47, 83(1)- (2), and 84(1) of the Court of Appeal Rules, 2009 (the Court of Appeal Rules); and section 93 of the Civil Procedure Code, Cap. 33, R.E. 2019 (CPC); praying for the following orders:-



- 1. That, this Honourable Court be pleased to order extension of time to file notice of appeal against the decision of this Honourable High Court of Tanzania at Dodoma delivered on 17/11/2020 (sic) in Land Appeal No. 89 of 2022 out of time.*
- 2. That the costs of this application to be provided for.*
- 3. Any other relief(s) this honourable court shall deem fit and just to grant.*

The application is supported by an affidavit deposed by the applicant on 25<sup>th</sup> March, 2025. The 1<sup>st</sup> and 2<sup>nd</sup> respondents jointly, and the 3<sup>rd</sup> respondent separately, duly filed their counter-affidavits.

By the order of this court, the application was argued by way of written submissions. The applicant had the representation of Mr. Sosthenes Mselingwa, advocate; the 1<sup>st</sup> and 2<sup>nd</sup> respondents were represented by Mr. Walter Massawe, advocate; and the 3<sup>rd</sup> respondent enjoyed the service of Ms. Margreth Mbasha, advocate. All parties complied with the scheduling orders.

The applicant's counsel prayed that the affidavit be adopted as part of the submissions. He stated that the application arose from the decision of this Court delivered on 17<sup>th</sup> November 2023, against which the applicant intends to appeal. However, the applicant was unable to file and serve the notice of



appeal and the letter requesting copies of the judgment and proceedings within the statutory period due to what was described as a technical delay. The learned counsel further submitted that since the delivery of the impugned decision by this Court, until 18<sup>th</sup> March 2025 when the Court of Appeal of Tanzania (CAT) rendered its decision, the applicant had been diligently pursuing his rights before the courts, and that the delay had been beyond his control.

The applicant's counsel relied on section 11(1) of the AJA, and Rules 83 and 84 of the Court of Appeal Rules, and argued that this Court has jurisdiction to extend the time for filing and serving the notice of appeal. To support the argument that technical delay constitutes sufficient cause, he cited the decision of the CAT in **Fortunatus Masha vs William Shija and Another** [1997] TLR 154. He also relied on the decision in **Mobrama Gold Corporation Ltd vs Minister for Energy and Minerals and Others** [1998] TLR 425, where it was emphasized that extension of time should not be denied where such refusal would unjustly stifle a party's right of appeal.

The applicant's counsel further submitted that an earlier appeal lodged before the CAT had been struck out due to anomalies in the record of appeal,



thereby necessitating the present application. In addition, he invoked article 13(6)(a) of the Constitution of the United Republic of Tanzania, 1977 (as amended), and argued that refusal of the application would amount to denial of the applicant's fundamental right to be heard. In support of this proposition, he relied on **Mbeya-Rukwa Autoparts and Transport Ltd vs Jestina George Mwakyoma** [2000] TLR 251, as well as **Moh'd Bakari Ramadhan vs Haji Kheri Kondo** (Legal Representative of Kondo Juma Haji), Civil Application No. 107/15 of 2019, where the CAT stressed that the right to be heard is a cardinal principle of natural justice which courts must jealously safeguard.

In conclusion, learned counsel for the applicant maintained that the delay had been genuine, unintentional, and technical in nature, and prayed that this Court be pleased to grant an extension of time to enable the applicant to file and serve the notice of appeal so that he could pursue his intended appeal before the CAT.

In response, learned counsel for the 1<sup>st</sup> and 2<sup>nd</sup> respondents, at the outset, prayed to adopt the counter-affidavit as part of their submissions. Counsel contended that the period of delay explained by the applicant only covered



the period between the delivery of the impugned decision of this Court and 18<sup>th</sup> March 2025, being the date when the CAT delivered its ruling on the preliminary objection. However, the respondents' counsel submitted that the applicant had not accounted for the period between the date of the said ruling of the CAT and the date of filing the present application. The respondents argued that the law requires an applicant to account for the entire period of delay, and such explanation must be clearly demonstrated in the supporting affidavit. Failure to do so, counsel argued, rendered the present application legally wanting.

To reinforce the argument, counsel cited the decision of the CAT in **Lyamuya Construction Co. Ltd vs Board of Registered Trustees of Young Women's Christian Association of Tanzania**, Civil Application No. 2 of 2010 [2010] TZCA 4 (3 October 2011), wherein it was emphasized that the Court's discretion to extend time must be exercised judiciously and upon sound reasons grounded in justice.

The learned counsel further submitted that the applicant could not shelter under the constitutional right to be heard when the application itself failed to satisfy the legal thresholds governing the extension of time. In the



circumstances, counsel maintained that dismissal of the present application would be fully justified in law.

In her submissions, counsel for the 3<sup>rd</sup> respondent strongly opposed the application. The learned counsel argued that although the application expressly sought extension of time to file the notice of appeal, it did not contain any prayer for extension of time to serve the letter requesting copies of the judgment and proceedings. Counsel for the respondent submitted that parties are bound by their pleadings and cited the case of **Zebra International Enterprises Limited vs Antony Mrisho Ngai and Others**, Civil Appeal No. 536 of 2020 [2024] TZCA 142 (28 February 2024) in support.

The learned counsel further submitted that extension of time was a discretionary remedy which could only be granted upon sufficient cause being established, and that the applicant was required to account for every day of the delay as stated in the case of **Lyamuya Construction Company Limited** (supra). The respondent's counsel argued that, save for paragraph 6, the applicant's affidavit did not explain the delay, and even the reasons advanced were unjustified.



Similarly, counsel stated that the applicant had also failed to account for the period between the ruling of the CAT delivered on 18<sup>th</sup> March 2025 and the filing of the present application, which she contended was fatal. Accordingly, she prayed that the application be dismissed with costs for lack of merit.

In rejoinder, the applicant's counsel reiterated that the applicant was justified in seeking an extension of time to serve the notice of appeal and the letter requesting copies of the judgment and proceedings. He maintained that the delay was a technical one, fully explained in his affidavit, and that the respondents had not challenged the substance of the prayer but had only raised procedural objections. The applicant's counsel further argued that technical or administrative delay constitute sufficient cause for extension of time where the applicant had acted diligently. He therefore prayed that, in the interests of justice, the application be granted.

In determining the present application, I am mindful that the grant of an extension of time lies within the discretion of the Court. Such discretion, however, is not exercised arbitrarily but judicially, guided by well-established principles. This position was clearly articulated by the CAT in **Omary Shaban S. Nyambu vs Dodoma Municipal Council & Others**, Criminal



Application 125 of 2020 [2021] TZCA 423 (27 August 2021), at page 10, where it was held that:

*"It is a settled position that extension of time is discretionary on the part of the Court. **Discretion, which must be exercised judiciously and to a large extent confined to the facts of a particular case...** that when exercising the said discretion, the applicant must establish a good cause for the delay. However, **there is no clear definition of good cause which can fit all possibilities.** The Court has provided guidance on factors to consider when determining what can be considered to be good cause. These include reasons for the delay, the length of the delay, whether the applicant was diligent, the degree of prejudice to the respondent if time is extended."* [emphasis added]

Turning to the instant application, the reasons for the delay are sufficiently explained in paragraphs 3, 4, 5, and 6 of the affidavit in support. In those paragraphs, the applicant sets out the sequence of events following the delivery of the decision of this Court in Land Appeal No. 89 of 2022 on 17<sup>th</sup> November 2023, which is the decision sought to be challenged. The narration demonstrates that the applicant duly lodged an appeal before the CAT; however, the same was unsuccessful due to procedural technicalities.

On the issue of accounting for the delay in filing the present application, it is evident that the applicant initially pursued the matter through the proper



legal channel by filing an appeal before the CAT, which rendered its ruling on 18<sup>th</sup> March 2025. Notably, from the date of delivery of the High Court judgment on 17<sup>th</sup> November 2023 up to 18<sup>th</sup> March 2025, the applicant has sufficiently accounted for the time spent, as the matter was actively before the appellate court.

In my considered view, the applicant acted with diligence and has satisfactorily accounted for the delay. Accordingly, I am satisfied that good cause has been established to warrant the exercise of this Court's discretion in favour of the applicant.

As regards the period following the determination by the CAT, the instant application was filed on 2<sup>nd</sup> April 2025, resulting in a delay of fifteen (15) days. In my considered view, a delay of less than one month is not inordinate and is reasonably explained. This position finds support in **Hamisi Mohamed (administrator of the Estates of the Late Risasi Ngawe) vs Mtumwa Moshi (administratrix of the Late Moshi Abdallah)**, Civil Application No. 407 of 2019 [2020] TZCA 13 (21 February 2020) where the CAT, at page 8, held that a period of less than a month spent by the applicant in filing a similar application, was reasonable. It was observed that:



***"After the latter application was struck out, the applicant took hardly a month to file the present application seeking extension of time to file an appeal. In other words, the applicant was diligent all along to file an appeal."* [emphasis added]**

From the foregoing authority, it is evident that the CAT has consistently clarified that the requirement to account for each day of delay is a rule of prudence rather than a rule of law. What the law demands is a satisfactory and reasonable explanation for the entire period of delay, not a rigid or mathematical day-to-day account. Accordingly, where the explanation provided substantially covers the whole period of delay, the Court will not insist on a literal narration of each intervening day.

In light of the foregoing determination, I find the application for extension of time to be meritorious and accordingly grant it. The applicant is hereby granted leave to file a notice of appeal to the CAT against the decision of this Court in Land Appeal No. 89 of 2022. The said notice of appeal shall be filed within twenty-one (21) days from the date of delivery of this ruling.

For the avoidance of doubt, the extension granted herein relates strictly to the filing and service of the notice of appeal and the letter requesting copies of the judgment and proceedings, in accordance with the Court of Appeal



Rules. In view of the fact that the delay was occasioned by technical reasons while the applicant was diligently pursuing his right of appeal, I make no order as to costs.

Ordered accordingly.

The right of appeal is explained.

**DATED** at **DODOMA** this 29<sup>th</sup> day of December, 2025.



  
**I.D. MUSOKWA**  
**JUDGE**

Ruling delivered in the presence of the applicant, and in the presence of the 3<sup>rd</sup> respondent.



  
**I.D. MUSOKWA**  
**JUDGE**